

Nepal Special Service Act, 1985

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NEPAL SPECIAL SERVICE ACT, 2042

Date of Royal Seal and Publication

2042.5.2

Amending Acts

1. Nepal Special Service (First Amendment) Act, 2047 2047.12.29
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
3. Some Nepal Acts Amendment Act, 2075 2075.11.19

Act No. 9 of the year 2042

Act, 2042 made to provide for matters relating to Nepal Special Service

Preamble: Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to make provision for the formation of Nepal Special Service and related service conditions in order to maintain the security,

This Act is enacted by His Majesty King Birendra Bir Bikram Shah Dev on the advice and with the consent of the National Panchayat. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Special Service Act, 2042".

(2) This Act shall come into force immediately. 2. Definition: Unless the subject or context otherwise requires, in this Act,-

(a) "Service" means the Nepal Special Service formed pursuant to Section 3. Amended by the First Amendment.(b) "Office" means the National Investigation Department established pursuant to Section 4 and the Omitted by the Some Nepal Acts Amendment Act, 2075. office under that Department.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Formation of Nepal Special Service: (1) The Government of Nepal may form the Nepal Special Service.

(2) The formation of the Nepal Special Service and other procedures relating thereto shall be as prescribed. Amended by the First Amendment.4. Establishment of Office: (1) For the conduct of work relating to the Service, the National Investigation Department shall be established under the Amended by the Some Nepal Acts Amendment Act, 2075.Office of the Prime Minister and Council of Ministers.

(2) Offices Omitted by the Some Nepal Acts Amendment Act, 2075. may be established as necessary under the supervision and control of the National Investigation Department established pursuant to Sub-section (1).

(3) The Nepal Public Relations Head Office and the offices under it established prior to the commencement of this Section shall, after the commencement of this Section, be deemed to have been converted into the National Investigation Department and the offices under it. 5. Functions, Duties and Powers of the Office: The

functions, duties, and powers of the Office shall be as prescribed. Added by the First Amendment.5a.

May exercise necessary powers in the course of investigation: (1) The Government of Nepal may assign the National Investigation Department to conduct investigation on matters it deems necessary. (2) In the course of investigation by the National Investigation Department pursuant to Sub-section (1), the investigating officer may exercise the powers vested in the police pursuant to the Police Act, 2012. (3) If any irregularity is found from the investigation conducted by the National Investigation Department pursuant to Sub-section (1), the Government of Nepal shall file a case against the concerned person in accordance with the prevailing law.

Added by the First Amendment.5b. Obligation to provide assistance: A government office or person shall provide assistance to an employee of the Office carrying an identity card of the Office in work relating to the Office. 6. Appointment and Service Conditions of Employees: The appointment, transfer, promotion, and dismissal of employees of the Service and other conditions of service shall be as prescribed. 7. Saving: (1) Except for cases concerning offenses punishable under Section 9, no agency, authority, or court shall question or summon an employee of the Service or a person assigned to the work of the Service regarding when and to whom the information collected by such employee or person in the course of performing their duty was given, or what kind of information was collected. (2) No one shall be compelled to produce or disclose confidential documents in the Office in any agency, authority, or court other than an authorized officer. 8. Prohibited Acts: (1) An employee of the Service shall not misuse their position, and other persons assigned to the work of the Service shall not act contrary to their duty. (2) An employee of the Service or a person assigned to the work of the Service shall not, while in the Service or engaged in the work of the Service, or even after leaving the Service or the work of the Service, breach the confidentiality relating to the work of the Service in any manner. 9. Penalty: An employee of the Service or any person assigned to the work of the Service who acts contrary to this Act shall, depending on the gravity of the offense, be liable to Amended by the First Amendment.imprisonment for up to ten years or a fine of up to ten thousand rupees or both, and if any loss of property has been caused by such offender, that loss shall be recovered by auctioning the movable and immovable property belonging to the share of such person.

If the amount of compensation to be paid cannot be fully recovered from such property, the remaining amount shall be subject to imprisonment as in the case of non-payment of a fine under the prevailing law. 10. Jurisdiction to try cases: (1) The jurisdiction to try cases relating to offenses punishable under this Act shall lie with the court formed or designated by the Government of Nepal by publishing a notice in the Nepal Gazette.

(2) While conducting proceedings and adjudicating cases under this Act, the court pursuant to Sub-section (1) shall adopt the procedure according to the Special Court Act, 2059. Provided that, notwithstanding anything contained in Clause (e) of Section 7 of the Special Court Act, 2031, Amended by the Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066. or in any other prevailing Nepal law regarding the detention of an accused under this Act, if there are reasonable grounds to detain the accused for trial, the court may, by recording an order stating such grounds and also any submission made by the government attorney in that regard, detain the accused for trial. No complaint shall be made challenging such detention order on any ground.

(3) An appeal against the judgment or final order of the court pursuant to Sub-section (1) shall lie to the Supreme Court, and such appeal shall be heard and decided by a bench of at least three judges of the Supreme Court. 11. Proceedings to be held in camera: The trial of cases relating to offenses punishable under this Act and the proceedings and decision on appeal shall be held in camera. 12. Power to make Rules: For the purpose of implementing the objectives of this Act, the Government of Nepal may make necessary rules, and such rules shall not be published publicly by the Government of Nepal.